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PLANNING DEPARTMENT

Ms. Krista Mason
Principal Planner
County of Riverside - Lead/Public Agency
4080 Lemon Street, 12th Floor
Riverside, CA 92501

CC Via E-Mail: kmason@rivco.org

Subject: Review Comments for the Initial Study/Mitigated Negative Declaration (IS/MND) for Conditional Use Permit No. 230002: Crescent Gardens Cemetery

Dear Ms. Mason,

The Elsinore Valley Municipal Water District (EVMWD) appreciates the opportunity to submit review comments to the County of Riverside on the CEQA Initial Study for the proposed Conditional Use Permit No. 230002, Crescent Gardens Cemetery project (Proposed Project).

EVMWD is a public water agency that provides water, wastewater, and recycled water services for more than 160,000 residents in the Cities of Lake Elsinore, Canyon Lake, and Wildomar as well as portions of the City of Murrieta and unincorporated areas of Riverside County. The Proposed Project is near the San Jacinto River, which is a major tributary of Canyon Lake. Canyon Lake is a key component of EVMWD's water supply portfolio and is EVMWD's sole local surface water source of supply.

EVMWD is concerned about the Proposed Project's potential impacts on water quality, public health, and safety. The Proposed Project is located within the San Jacinto River/Canyon Lake Watershed (Watershed), and flows on and in the Watershed drain to Canyon Lake. The Proposed Project poses potential risks of chemical and biological contaminants migrating into nearby surface water and groundwater. The IS/MND needs to adequately address drinking water source protection requirements under state and federal law. In addition, inconsistencies in stormwater management and groundwater analyses, the lack of site-specific groundwater data, and the absence of a robust surface water and groundwater monitoring and mitigation program create uncertainty regarding the true potential impacts of the Proposed Project. EVMWD recommends that the County review and evaluate these comments and concerns and that the environmental documentation be revised to include comprehensive protections and enforceable monitoring measures to ensure safe and reliable drinking water for the community.

EVMWD's comments and recommendations to the IS/MND are summarized below.

1) **Drinking Water Source Assessment and Protection, Safe Drinking Water Act:**

   Under the federal Safe Drinking Water Act (SDWA), California's Drinking Water Source Assessment and Protection (DWSAP) Program, administered by the State Water Resources Control Board Division of Drinking Water (DDW), requires that public drinking water sources be evaluated and documented for their vulnerability to potential contaminating activities (PCAs). The Proposed Project is located within the San Jacinto River/Canyon Lake Watershed and therefore constitutes a PCA for EVMWD's Canyon Lake reservoir, a drinking water source subject to DWSAP assessment requirements.

   The IS/MND and supporting technical documentation do not currently address DWSAP considerations. Accordingly, the environmental documents should be revised to:

   - Incorporate a comprehensive DWSAP vulnerability assessment specific to Canyon Lake
   - Identify and evaluate appropriate mitigation measures to reduce potential impacts to drinking water quality
   - Include review comments and concurrence from DDW's Riverside District Office, the regulatory authority that oversees EVMWD's drinking water supplies.

2) **Contaminants of Concern and Assessment of Impacts on Canyon Lake TMDL:**

   The Proposed Project indicates a natural burial process with shrouded, non-embalmed bodies placed directly on gravel in five-foot-deep grave sites. Even without embalming or caskets, body decomposition may release several chemical and biological contaminants of concern (COCs), including, but not limited to, total nitrogen (TN), total phosphorus (TP), ammonia and nitrate, sodium, potassium, chloride, volatile organic acids, E. Coli bacteria, enteric pathogens (e.g. *Giardia lamblia* and *Cryptosporidium)*, and viruses.

   The IS/MND (Table 8) references the downstream Canyon Lake and Lake Elsinore 2004 Total Maximum Daily Load (TMDL) numeric water quality objectives (WQOs). The Santa Ana RWQCB is currently revising those objectives, with adoption by the State Water Resources Control Board (SWRCB) and the U.S. Environmental Protection Agency anticipated in the coming months (2025 TMDL revisions).

- The Proposed Project should replace the 2004 TMDL numeric WQOs with the 2025 TMDL revisions once adopted.

Statements in the IS/MND suggest stormwater can be discharged offsite to natural streams from the onsite water quality/detention basins. It is also conceivable that perched groundwater from the site could (1) migrate to and influence adjacent natural streams and (2) migrate laterally due to the presence of shallow impermeable bedrock as noted in the geotechnical report.

The information provided in the IS/MND does not facilitate a reliable estimation of the proportion of COCs from the cemetery that may reach Canyon Lake. The IS/MND indicates that the first flush of all storm runoff will be treated in the water quality/detention basins prior to leaving the site as detailed in the Water Quality Management Plan (WQMP), however, the treatment provisions have not been identified in the WQMP. Due to the uncertainty of water quality discharges from the cemetery, the Proposed Project should gather empirical data on an ongoing basis by installation of a water quality monitoring station(s) downstream of the cemetery. This would allow for assessment of potential COC contributions, particularly if sampled during wet weather events and compared against established background concentrations.

- The Proposed Project should implement a detailed WQMP that identifies and incorporates specific treatment best management practices (BMPs) within the onsite water quality/detention basins to ensure removal of potential contaminants associated with cemetery operations.

The statement in the IS/MND referencing EVMWD's water quality monitoring effort's downstream from the project "... therefore, any potential increase in constituents that may enter the groundwater or surface water that may be attributed to the cemetery would be identified early through routine sampling.", is inaccurate.

- This statement must be corrected, as EVMWD will not be conducting any routine or ongoing sampling at the site and/or immediately downstream of the proposed site, and therefore, neither the Proposed Project nor EVMWD will be able to determine what COCs, if any, can be directly attributed to the cemetery.

3) Groundwater Impacts:

The IS/MND identifies the presence of a 6-ft minimum earthen buffer between the bottom of each grave and any potential perched groundwater. The IS/MND also identifies that this buffer would reduce the potential for bacteria to directly enter the groundwater during natural body decay. However, the supporting documentation indicates that this buffer is based on only a single data point from a 2006 geotechnical

investigation, which identified perched groundwater at approximately 13-feet below ground surface (bgs). Given the presence of shallow bedrock throughout the site and poor percolation rates identified in the geotechnical report, it is plausible that perched groundwater may occur at depths shallower than 13-feet bgs throughout the site, which could compromise the buffering capacity of the earthen buffer and increase the migration potential to adjacent natural streams following towards San Jacinto River/Canyon Lake.

The Proposed Project should validate the historical perched groundwater condition identified at the site through the implementation of a new investigation aimed at identifying the current groundwater and perched water elevations at the site. Additionally, the Proposed Project should consider installing monitoring wells at strategic locations across the site to provide current and ongoing groundwater level information that can be used to monitor and evaluate the depth and fluctuation of the groundwater table and the presence of potential COCs during both dry and wet seasonal periods.

The international study on cemetery impacts cited in the IS/MND recommends that groundwater within cemetery sites be regularly monitored for contamination and water table fluctuations. Consistent with this best practice, the project should consider implementation of a groundwater monitoring program as mentioned above.

The IS/MND and the geotechnical report identify that the depth to groundwater at the project site is 147 ft bgs. However, this determination is based on a correlation to a water level in a well located 3.8 miles away from the project site. Identifying the depth to groundwater at the project site in this manner is likely inaccurate and is likely to lead to the mischaracterization of the actual depth to groundwater at the project site. As such, the Proposed Project should conduct a site-specific investigation to determine the actual depth to groundwater at the site.

The IS/MND statement that indicates the project site is located in the Elsinore Valley Groundwater Sustainability Agency (EVGSA) boundary is inaccurate. The project site is actually located outside of any GSA, and as stated previously, we are concerned with the potential negative impact to the water quality in Canyon Lake Reservoir via potential groundwater/surface water interactions resulting from the Proposed Project.

4) General Comments

1. The IS/MND incorrectly states that groundwater "... represents 40-50 percent of ..." EVMWD's drinking water supplies. This should be corrected to reflect that 25-30 percent of EVMWD's drinking water supplies are comprised of groundwater.

2. The IS/MND describes washing of the body to ensure that any biological pathogens would not enter into the groundwater, but there is no description and/or discussion of any biological pathogens that may be generated during decomposition of the body, and if that occurs, how those pathogens would be prevented from entering the groundwater or surface water.

3. The IS/MND indicates that all stormwater would be retained on site. This statement contradicts other sections of the IS/MND and its supporting technical documents that indicate stormwater will be discharged offsite from the onsite water quality/detention basins. The IS/MND and its supporting documents should be revised such that all references to stormwater management are consistent between the various sections and documents.

4. The WQMP indicates that "Reclaimed water will be used for non-potable water demands for the project." This is inaccurate as EVMWD does not have recycled water facilities in the area. Based on this statement in the WQMP, the assessment of Harvest and Use BMPs was not performed. Since recycled water is not available at the project site, the WQMP should be revised accordingly.

EVMWD appreciates the opportunity to provide comments and will be reviewing and commenting on additional supporting reports and documents provided by the Lead Agency as they become available. Should you have any questions or require additional information, please contact me by telephone at (951) 674-3146, extension 8786 or by e-mail at nnuezca@evmwd.net.

Sincerely,

Nelson Nuezca

Nelson Nuezca, P.E.
Engineering Manager
Elsinore Valley Municipal Water District